

HEADNOTE

“1. When a case is closed pursuant to Rule 360, the decision on the cost basis pursuant to Rule 118.5 Rules of Procedure must be made by the fully constituted panel.

2. Rules 370.9 (b) (i) and 370.9 (c) (i) Rules of Procedure apply mutatis mutandis in the case of patent surrender.

3. Prior notification is not always required for filing an action for revocation. Conversely, this does not mean that waiving prior notification has no consequences for the cost allocation between the parties if the patent proprietor immediately acknowledges or surrenders the patent in response to the revocation action.

4. It is generally inequitable to impose procedural costs on the patent proprietor who, in response and with reference to relevant prior art presented for the first time with the revocation action, immediately surrenders the patent. Keywords: closure; patent surrender; prior request for surrender; cost decision basis”

COURT

PROCEEDINGS

Action for revocation

PATENT

EP 3 170 639 B1

METHOD FOR CONTROLLING THE
SPEED AND THE POSITIONING OF A
TOOL CHANGING TRUCK, AND
WORK STATION FOR A MACHINE
EQUIPPED WITH
INTERCHANGEABLE TOOLS

KEYWORDS

Closure

Patent surrender

Cost allocation

Revocation action

Prior notification

Rule 360 No need to adjudicate

SUMMARY

A UPC panel has issued a decision on an action for revocation. The patent at issue relates to a method for controlling the speed and positioning of a tool-changing truck and a work station for a machine equipped with interchangeable tools. According to the headnotes of the decision, when a case closes under Rule 360, the full panel must decide on costs under Rule 118.5. The procedural rules governing cost allocation in patent revocation cases apply equally to situations where a patent proprietor surrenders their patent. Prior notification of a revocation action is not strictly required, though skipping this step may affect how costs are divided between parties if the proprietor then surrenders the patent immediately. It is generally considered unfair to make a patent proprietor pay procedural costs when they surrender their patent promptly in response to a revocation action that cites relevant prior art presented for the first time in that action.